

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 7199 of 2026

Mst. Mariya Abdul Sattar & another
vs
Judge Family Court, Mianchannu & another

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
	15.06.2026	Rana Muhammad Ashraf Jameel, Advocate for petitioners. Messrs Musleh-ud-Din Khan and Malik Muhammad Bakhsh Khakhi, A.A.Gs. Rana Ghulam Hussain, Assistant Attorney General for Pakistan, Syed Ali Allow-u-Din and Ahmad Hassan Khan Khichi Advocates.

The petitioners, Mariya Abdul Sattar and her minor son Muhammad Asad Shahzad are aggrieved of dismissal of their application under Section 476 of Code of Criminal Procedure, 1898 (**‘Cr.P.C.’**) filed against respondent No.2, Muhammad Shahzad son of Abid Hussain through order dated 04.06.2026 (**‘Impugned order’**) passed by the Respondent No.1, Judge Family Court, Mian Channu, District Khanewal (**‘Court’ / ‘Family Court’ / ‘Trial Court’**). It is claimed that said order is against the facts of the case and law on the subject, hence by setting the same aside the aforesaid application filed by the petitioners be allowed.

2. At the outset, learned counsel for the petitioners has been confronted with the legal position that dismissal of petitioners’ application under Section 476 Cr.P.C. by the Family Court is a final order, against which remedy of appeal is available in terms of Section

14 of the Family Courts Act, 1964 (**‘Act’**), therefore this constitution petition filed under Article 199 of the Constitution of Pakistan, 1973 (**‘Constitution’**) is premature due to availability of alternate remedy, which remedy has not been availed before approaching this Court. The learned counsel for the petitioners in response states that in terms of Section 476 Cr.P.C. remedy of appeal is available only if order of conviction is passed against a person, whereas no remedy is available against dismissal of the said application, therefore constitutional petition is maintainable before this Court.

3. The brief background of the case as stated in the instant petition is that petitioners filed a suit for recovery of maintenance allowance against the respondent No.2, which was entrusted to respondent No.1. The respondent No.2 did not appear in the court despite being summoned. On 28.11.2025 order was passed for service of the respondent No.2 through publication in newspaper, whereupon memo of appearance was submitted on his behalf on 15.12.2025. However, as he did not file written statement despite opportunity, on 03.01.2026 his right to submit the same was closed by invoking the provisions of sub-section (5)(a) of Section 9 of the Act and matter was adjourned for pre-trial proceedings. On 20.01.2026 order was passed fixing the interim maintenance allowance of the minor at the rate of Rupees 20,000/- per month effective from the date of first appearance of respondent No. 2 in court and issues were framed on the same date. On 31.03.2026 due to non-appearance of respondent No.2, ex-parte proceedings were initiated against respondent No.2. On 04.05.2026, when the matter was fixed for ex-parte documentary evidence of the petitioners,

respondent No.2, through his attorney Mehboob Ahmad, filed an application for setting aside ex-parte proceedings by recalling order dated 31.03.2026. On 12.05.2026 the petitioners submitted an application under section 476 Cr.P.C. for initiating proceeding against respondent No.2 and his attorney by claiming that power of attorney was a bogus document prepared for the purpose of fraud. After contest by the other side, the application for setting aside ex-parte proceedings filed by respondent No.2 was allowed and the application under Section 476 Cr.P.C. filed by the petitioners was dismissed vide consolidated order dated 04.06.2026. The order of dismissal of application under Section 476 Cr.P.C. is under challenge through the instant constitution petition. The operative portion of said order, which is impugned herein, is reproduced below:-

“Regarding the second application, it is a fundamental principle that proceeding under Section 195(c) read with Section 476 Cr.P.C. cannot be set into motion merely on basis of bald, oral assertions. To date, no competent forum or civil court has recorded any definitive finding declaring the disputed special power of attorney as fake or forged. Furthermore, initiating a preliminary inquiry requires a strong prima facie foundation, such as a forensic report or undisputed documentary evidence which is not present at this time.”

4. Subsection (4) of Section 476 Cr.P.C. provides remedy of appeal against an order of conviction passed on application filed under the said section, which reads as follows:-

"476. Procedure in cases mentioned in section 195. (1) When any offences referred to in section 195, Sub-section (1) clause (b) or clause (c), has been committed in, or in relation to a proceedings in any Civil, Revenue or Criminal Court, the Court may take cognizance of the offence and try the same in accordance with the procedure prescribed for summary trials in Chapter XXII.

(2).....

(3).....

(4) Any person sentenced by any Court under this section may, notwithstanding anything herein before contained, appeal:

(a) in the case of a sentence by the High Court, to the Supreme Court;

(b) in case of a sentence by a Court of Sessions, or District Court, or a Court exercising the powers of a Court of Sessions or District Court, to the High Court; and

(c) in any other case to the Sessions Judge."

5. With reference to the afore-referred provision it is stated that although remedy of appeal is provided against conviction, no remedy is provided in the said section against a dismissal of application filed under the said provision of law and in view thereof it is claimed that constitution petition to challenge such an order is maintainable.

6. It is not disputed that the impugned order has been passed by the Family Court, which is creation of the Act, 1964 and is a special law promulgated to provide for expeditious decision of cases, whereby the court has the jurisdiction to adopt its own procedure to the exclusion of general law subject to the rider that said procedure is neither illegal nor prohibited by law or against any express provision of law. The said Act also provides for remedy against the orders and decisions passed by court under the said law in terms of Section 14 of the Act. For ready reference relevant portion of Section 14 is reproduced below:

"14. (1) Notwithstanding anything provided in any other law for the time being in force, a decision given or decree passed by a Family Court shall be appealable:-

(a) to the High Court, where the Family Court is presided over by a District Judge, an Additional District Judge or any person notified by Government to be of the rank and status of a District Judge or an Additional District Judge; and

(b) to the District Court, in any other case."

7. For all intents and purposes the impugned order, whereby the application filed by the petitioners under Section 476 Cr.P.C. has been dismissed, is a final order passed by the Family Court on the said application, which falls within the scope of the words ‘*a decision given*’ used in Section 14 of the Act, which is a special law dealing with family matters and appeal against the same would be available before the District Court despite the fact that the application has been dismissed against which remedy is not provided in terms of sub-section (4) of the Section 476 Cr.P.C. For reaching said conclusion reference may be made to the principles laid down in H. Munawar Ali versus Mst. Sarwar Bano (1989 MLD 4654 Lahore), wherein while dealing with a similar matter where application for proceeding under section 476 Cr.P.C. was dismissed by Family Court for lack of jurisdiction and revision petition against that order was allowed by the Additional Sessions Judge and case was remanded for proceeding under section 476 Cr.P.C., which order was challenged by the aggrieved party before this Court and this Court observed that no party aggrieved by any order passed by Family Court could have recourse to any Court other than provided in section 14 of the Act for the reason that where a special provision had been made for appeals against orders passed by a Court or authority, the parties could not have recourse to any other forum and by declaring the revisional orders as without jurisdiction and illegal, the same were set aside in constitutional jurisdiction in circumstances.

8. It is pertinent to mention here that had the impugned order been passed by the Sessions Court or by a Magistrate and not by the Family Court, remedy of

revision under Sections 439 and 439-A Cr.P.C. would be available against dismissal of the said application, however that situation in this case does not arise.

9. When confronted that in view of what has been discussed above and availability of alternate remedy of appeal in terms of Section 14 of the Act, this constitutional petition is premature and liable to be dismissed as not maintainable, the learned counsel for the petitioners does not press this petition in order to avail the appropriate remedy.

10. ***Dismissed*** as withdrawn.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *

APPROVED FOR REPORTING: